

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

DOCKET NO. 25-24

Served April 16, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S MOTION FOR ENLARGEMENT AND OTHER RELIEF

This matter came on for consideration of Complainant’s Motion for Limited Enlargement of Time and Request to Deem CADRS Preliminary Conference Timely. For the reasons set forth below, the motion is **DENIED** without prejudice.

Pursuant to the Initial Order dated September 5, 2025, within 15 days of service of the answer, the parties were required, *inter alia*, to: 1) submit a joint status report with a proposed schedule; and 2) participate in a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) as to whether this matter may be resolved through mediation. (Dkt. 5.)

The answer was served on March 27, 2026. (Dkt. 24.) Accordingly, the joint status report was due to be submitted and the CADRS conference to be conducted no later than Monday April 13, 2026, after accounting for the fact that the 15th day fell on Saturday April 11, 2026.

On April 14, 2026, one day late, Complainant filed a Joint Status Report and Proposed Schedule that is signed by Complainant but not signed by Respondent. (Dkt. 25.) On the same date, Complainant filed the pending motion, which seeks to enlarge the deadline for the CADRS conference from April 13, 2026, to the scheduled date of April 14, 2026. The motion does not seek an extension of the April 13, 2026, deadline to file a fully executed joint status report and proposed schedule.

The motion is deficient for two reasons. First, the motion was not filed at least seven days in advance of the deadline in accordance with 46 U.S.C. § 502.102(a), and does not assert good cause for failure to meet this requirement. Second, the motion does not comply with 46 § U.S.C. 502.71(a) in that it fails to state whether there is “any opposition to the relief requested and if there is opposition, to narrow the areas of disagreement.” Rather, Complainant’s certificate of conferral states: “Pursuant to the Commission’s Rules and the Initial Order, Complainant certifies that it conferred with Respondent regarding the relief requested herein. Respondent, through the CADRS scheduling process, confirmed its agreement to participate in the CADRS preliminary

conference scheduled for April 14, 2026. Accordingly, this motion is submitted as unopposed.” Thus, it appears that Complainant deemed the motion to be unopposed simply because Respondent agreed to participate in the CADRS conference scheduled for April 14, 2026, and did not determine whether the relief requested in the motion was opposed. This does not satisfy Complainant’s obligation to confer with Respondent in advance of filing the motion to determine whether or not the relief requested is opposed.

For these reasons, Complainant’s Motion for Limited Enlargement of Time and Request to Deem CADRS Preliminary Conference Timely (Dkt. 26) is **DENIED** without prejudice.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY
Date: 2026.04.16 13:29:31 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge